

ORDER SHEET
IN THE LAHORE HIGH COURT,
LAHORE.

JUDICIAL DEPARTMENT
Crl. Misc. No. 2481-B of 2025

Qari Shahid. **Versus** The State and another.

S.No. of order/ proceeding.	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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28.04.2025. Ch. Muhammad Lehrasib Khan Gondal, Advocate for the petitioner.
Mr. Amjad Javed, Deputy Prosecutor General alongwith Khalid, S.I.
M/s Aqeel Afzal Awan and Zaman Ali Dogar, Advocates for the complainant.

The petitioner (Qari Shahid), being arrayed as an accused in case F.I.R. No. 1403/2024, dated 19.10.2024 registered with police Station Rangpura, District Sialkot for offence under Section 377-B PPC, seeks his post arrest bail, after the same was refused by the court of learned Additional Sessions Judge, Sialkot, vide order dated 04.11.2024.

2. According to prosecution story as narrated in the F.I.R. on 09.10.2024 son of Adeel Ahmad (complainant) namely Rohan went to mosque of the vicinity for offering Maghrib prayer. After the prayer when all the ‘Namazi” had left, Qari Shahid son of Ahmad Khan took the complainant’s son to his room, where he started obscene activities and made an attempt to commit sodomy with son. Thereafter, he left the child.

3. Learned counsel for petitioner, while conversing for the bail, maintained that there was delay of ten days in lodgment of F.I.R.; victim was not got medico legally examined; nothing was recovered from petitioner; there was no chance of the conviction in the present case; all the above weak and palpable circumstances, when are taken into account accumulatively, are sufficient to make present

case that one of further inquiry; petitioner was falsely involved in the case by complainant in order to achieve some sinister motive.

4. The bail was opposed vehemently and rigorously by the learned counsel for the complainant and learned Deputy Prosecutor General on variety of the grounds.

5. After hearing all the concerned and perusal of record it was noticed by me that petitioner (Imam of the mosque) was under the allegation that he accompanied the victim Rohan (9) son of complainant into his room after Maghrib prayer and committed sexual abuse with him.

6. Such like occurrence involve family honour, as such these are not disclosed by the victim of tender age due to the fear, as such delay in reporting the such like matter to police normally happens in our society. Said delay cannot be resolved in favour of petitioner/accused. Seven F.I.R(s) stood registered against the petitioner containing similar allegation. Modus operandi adopted by petitioner was almost identical in all the above cases. Involvement of petitioner in crimes of similar nature was admissible against him as evidence of the similar facts, which was relevant under Article 27 of the Qanun-e-Shahadat, 1984, said provision reads as under:-

27. Facts showing existence of state of mind, or of body, or bodily feeling: *Facts showing the existence of any state of mind, such as intention, knowledge, good faith, negligence, rashness, ill-will or good-will towards any particular person, or showing the existence of any state of body or bodily feeling, are relevant, when the existence of any such state of mind or body or bodily feeling is in issue or relevant.*

Said fact of involvement of petitioner in the similar crime was showing his particular state of mind towards the children, who were his pupil and used to come to the

mosque for learning of Holy Quran. Such like allegation, which would otherwise expose the family of complainant/victim to public humiliation, is not leveled normally unless the same is true.

7. Contention of the learned counsel for the petitioner that victim was not subjected to medico legal examination, was hardly of any avail in the present case, because machinery of the law was put into motion only when the victim child made a disclosure to his elders regarding the mischief played by petitioner. There was no occasion for putting the victim to medico legal examination. Even otherwise, provision of Section 377-B of PPC was very comprehensive in its application. Act of “sexual abuse” has been defined in Section 377-A of PPC. It is appropriate to have a look of the above provision, which is being produced below for the facility of reference.

[377-A. Sexual abuse.—Whoever employs, uses, forces, persuades, induces, entices, or coerces any person to engage in, or assist any other person to engage in fondling, stroking, caressing, exhibitionism, voyeurism or any absence or sexually explicit conduct or simulation of such conduct either independently or in conjunction with other acts, with or without consent where age of person is less than eighteen years, is said to commit the offence of sexual abuse.]

The word “sexual abuse” used by legislature therein, is capable of being given extensive and comprehensive meaning catering multiple obscene activities. Said provision does not require the consummation of sexual intercourse of any sort. Mere persuasion, inducement, or enticement to engage a person in fondling, stroking, caressing, exhibitionism, voyeurism, or any obscene or sexually expressive conduct, or simulation of such conduct is also covered squarely by the above said definition.

8. Allegation leveled against the petitioner was specific, which even otherwise was heinous and cruel in nature and shocking to public morality. Mischievous act of the petitioner naturally created atmosphere of fear in the mind of the children of minor age and their parents, as such he was not entitled to any leniency.

9. Although victim was of tender age, but his statement recorded under Section 164 of Cr.P.C. depicted maturity of highest level, which was in consonance with the statement of other witnesses. Prima facie involvement of petitioner in the crime falling within embargo contained under Section 497 of Cr.P.C. could not be ruled out. Petitioner was found to be habitual in making sexual assaults upon the children of tender age in coercive atmosphere. Circumstances presented a dreadful picture, which do not permit me to exercise my discretion in favour of petitioner.

10. For the reasons recorded above, this petition fails and is **dismissed**.

11. Needless to mention that any observation made in the above order are tentative in nature and shall not influence the learned trial court in any manner.

(TANVEER AHMAD SHEIKH)
JUDGE

Approved for reporting.

JUDGE